

A railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of any luggage unless a railway servant has booked the luggage and given a receipt therefore and in the case of luggage which is carried by the passenger in his charge, unless it is also proved that the loss, destruction, damage or deterioration was due to the negligence or misconduct on its part or on the part of any of its servants.

Comments

Section 100 deals with the responsibility of the railway administration for any loss, destruction, etc. of luggage.

101. Responsibility as a carrier of animals. – A railway administration shall not be responsible for any loss or destruction of or injuries to any animal carried by railway arising from fright or restiveness of the animal or from over – loading of wagons by the consignor.

Comment

Section 101 absolves the railway administration of its responsibility for any loss, destruction or injury to animal arising from fright or restiveness of the animal or from overloading of wagon by the consignor.

Comments

102. Exoneration from liability in certain cases. – Notwithstanding anything contained in the foregoing provisions of the chapter, a railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of any consignment –

- (a) when such loss, destruction, damage, deterioration or non-delivery is due to the fact that a materially false description of the consignment is given in the statement delivered under section (1) of Sec. 66, or
- (b) Where a fraud has been practiced by the consignor or the consignee or the endorsee or by an agent of the consignor, consignee or the endorsee; or
- (c) Where it is proved by the railway administration to have been caused by, or to have arisen from –
 - i. improper loading or unloading by the consignor or the consignee or the endorsee or by an agent of the consignor, consignee or the endorsee;